

AGREEMENT  
Bid Number M-10-13

Contract Number \_\_\_\_\_

THIS AGREEMENT, entered into this \_\_\_\_ day of \_\_\_\_\_, \_\_\_\_\_, by and between the CITY OF CHEYENNE, WYOMING, hereinafter referred to as the "CITY", and Simon Contractors, hereinafter referred to as the "CONTRACTOR".

WITNESSETH that the Contractor and the City, for the considerations stated herein, mutually agree as follows:

ARTICLE 1. STATEMENT OF WORK. The Contractor shall furnish all supervision, technical personnel, labor, materials, machinery, tools, equipment, and services, including utility and transportation services, and perform and complete all work in an efficient and workmanlike manner in the construction of the "Snyder Avenue Reconstruction" project all in strict accordance with the contract documents including all addenda thereto, numbered and dated: Addendum No. 1 dated March 20, 2013.

ARTICLE 2. RESPONSIBLE DESIGNEE FOR THE CITY The Contractor shall in any and all matters relating to the scope of services to be provided under this Contract or any other provisions herein, contact the City Engineer, or his/her designated representative.

ARTICLE 3. TIME FRAME FOR COMPLETION. The services to be performed under this Agreement shall commence on the date stipulated in the "Notice to Proceed" that will be issued by the City. The work shall be completed by September 1, 2014. If the work has not been completed within the time stipulated above, including any extensions of time issued by the City for excusable delays, the Contractor and his/her sureties shall pay the City fixed, agreed liquidated damages, as stipulated in the Supplemental Conditions, for each calendar day of delay until the work is completed.

ARTICLE 4. COMPENSATION AND METHOD OF PAYMENT. The CITY will pay the Contractor for the performance of the Contract in current funds, the sum of Five Million, Six Hundred Sixty-Nine Thousand, Eight Hundred Fifty-Nine Dollars and Twenty Cents (\$5,669,859.20). In the event there are changes in the estimated quantities shown on the Bid Proposal, the unit prices multiplied by the actual quantities shall govern, and the total contract amount will be adjusted accordingly. The City agrees to pay the above amount for contractual services in the following manner, upon receipt of appropriate documentation:

- a. The Contractor will be paid on a monthly basis for percentage of estimated work completed. Submittal will be on or before the 25th of each month. The pay request shall be submitted on the Contract Payment Request Form and Itemized Pay Request or the AIA Documents G702 and G703. The engineer will review the estimate for approval prior to payment.
- b. The City will withhold ten percent (10%) of the dollar value of the work completed for a minimum of ten (10) days after Notice of Final Settlement has been published in accordance

with Wyoming Statute §15-1-113(h). Upon completion of the work under this Contract, the Contractor shall submit a Contractor's Certificate of Completion; the Consent of Surety; Final Waivers of Lien from the Contractor, and all Sub-Contractors, Suppliers and Materialmen; Affidavit of Release of Liens; Affidavit of Payment; and a current Workers Compensation Certificate. Final payment will not be made until the above documents have been received by the City and all items on the Punch List have been completed, and the advertising requirements have been met.

ARTICLE 5. CONTRACT. The executed contract documents shall consist of the following:

- |                            |                                       |
|----------------------------|---------------------------------------|
| a. This Agreement          | f. General Conditions and Insurance   |
| b. Addenda                 | g. Supplemental Conditions            |
| c. Invitation for Bids     | h. Part IV Forms & Notices            |
| d. Instructions to Bidders | i. Specifications, Special Provisions |
| e. Signed Bid Proposal     | j. Drawings                           |

This Agreement, together with other documents enumerated in this Article 5, which said other documents are as fully a part of the Contract as if hereto attached or herein repeated, forms the Contract between the parties hereto.

IN WITNESS WHEREOF, THAT the governing body of the City of Cheyenne has authorized the Mayor as Executive Officer of the City to enter into this Agreement, and that the parties hereto have caused this Agreement to be executed on the day and year in the first part herein written.

ATTEST:

**CITY OF CHEYENNE, WYOMING**

\_\_\_\_\_  
Carol Intlekofer-City Clerk

\_\_\_\_\_  
Richard L. Kaysen, Mayor

Simon Contractors .  
**Contractor**

By \_\_\_\_\_

\_\_\_\_\_  
Title

PO Box 209  
Cheyenne, WY 82003

Notary or Corporation Secretary:  
SUBSCRIBED AND SWORN TO BEFORE ME  
this \_\_\_\_ day of \_\_\_\_\_, \_\_\_\_.  
by \_\_\_\_\_  
My Commission expires: \_\_\_\_\_